NCE EXAM PREP

Practice Exam 06

Domain 6

Legal & Ethical Compliance

34 Practice Questions | 45 minutes

A, B, C answer choices

Answer Key and Explanations included

> **Instructions.** Select the single best answer for each question. Record your answers separately. This domain practice set is drawn from Full-Length Practice Exam 01. Use the suggested 45-minute practice timer. Do not consult Part B until you complete Part A. These domain timings are editorial practice allocations, not official NBCC section limits.

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PART A — QUESTIONS

Choose one answer (A, B, or C) per question.

Question 1

When a counselor identifies an apparent conflict between an ethical standard and a controlling law, which response is most appropriate?

A) Follow the ethical standard automatically because professional ethics supersede civil law

B) Ignore the ethical issue after confirming that the law applies to the counselor

C) Clarify the conflict through appropriate consultation, comply with controlling law, and minimize ethical harm

Question 2

> A counselor's website lists the counselor as a "certified complex trauma specialist." The counselor completed a weekend workshop with a similar title, but the sponsoring organization did not award a certification and the counselor holds no such credential.

What should the counselor do?

A) Keep the title because completion of relevant training is equivalent to certification for advertising purposes

B) Remove the unsupported title and describe the counselor's actual education, licenses, and credentials accurately

C) Keep the title if the website also states that results from counseling cannot be guaranteed

Question 3

> A Deaf client requests a qualified American Sign Language interpreter for intake. The practice's applicable accessibility rule requires effective communication and states that an adult companion should not be used as an interpreter unless the client requests it and the arrangement is appropriate. The client does not want a family member involved.

What should the counselor arrange?

A) Ask the client to bring a relative because the relative already knows the client's history

B) Conduct the intake through written notes even though the client says this will not provide effective communication

C) Provide a qualified interpreter through an accessible, confidentiality-protective arrangement

Question 4

> A new telehealth client joins an intake from an account bearing a different name and declines to state the current physical location. The practice requires identity, location, emergency-contact, and privacy checks before clinical services begin.

What should the counselor do?

A) Complete the required verification and emergency checks before proceeding with clinical services

B) Begin the intake and collect the information only if a crisis topic arises

C) Rely on the account profile because platform authentication replaces clinical verification

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Question 5

> Before a telehealth session, a counselor verifies the client's current location and emergency contact as required by the practice plan. During the session, the client reports intent to use a loaded firearm immediately and then the video connection fails. Repeated calls to the client do not connect.

What should the counselor do next?

A) Activate the emergency protocol using the verified location and disclose only information needed for the response

B) Wait for the client to reconnect because contacting responders would violate telehealth confidentiality

C) Send a portal message asking the client to schedule an in-person risk assessment the following day

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Question 6

> A client whose deductible is unmet asks the counselor to submit a code for a longer, more complex session than the 45-minute service actually provided so the plan will pay more. The clinical note accurately reflects the shorter session.

How should the counselor respond?

A) Use the higher-paying code once if the client agrees to repay any later adjustment

B) Add complexity language to the note so the requested code becomes supportable

C) Bill only for the service actually delivered and documented, and explain the financial options honestly

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Question 7

What is the most appropriate way for a counselor to implement a substantial fee increase for established clients?

A) Give reasonable advance notice, discuss the change and available options, and update the financial agreement

B) Apply the increase immediately so all clients are treated identically on the same billing date

C) Delay notice until claims are processed so clients do not discontinue prematurely

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Question 8

A wildfire evacuation closes a group practice building, disables the office telephone, and makes paper files temporarily inaccessible. The practice has a tested continuity plan with secure remote contact methods, backup access to essential information, and referral procedures for urgent needs.

What should the clinical director do?

A) Wait until the building reopens so clients do not receive incomplete information

B) Activate the continuity plan, notify clients through approved channels, and prioritize urgent coverage and secure record access

C) Post all scheduled clients' names and appointment changes on the practice's public social-media page

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Question 9

A client identifies a coworker, describes a plan to shoot that person at work the next morning, and reports access to a firearm. The jurisdiction's law requires a counselor who determines that a serious, imminent threat exists to take reasonable protective action, which may include notifying the potential victim and law enforcement.

What is the counselor's most appropriate response?

A) Keep the statement confidential until the counselor obtains the client's written permission to disclose it

B) Follow the jurisdiction's protective-action requirement, continue the safety assessment, and limit disclosures to what is necessary

C) Warn every employee at the workplace so no potentially affected person is omitted

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Question 10

After sending an authorized treatment summary, a counselor discovers that one digit in the fax number was wrong and an unrelated business received it. The practice's incident policy requires immediate reporting to the privacy officer, mitigation when feasible, risk assessment, and any required notifications.

What should the counselor do?

A) Wait to see whether the unintended recipient contacts the practice before creating a record of the event

B) Delete the fax confirmation because retaining it would increase the practice's exposure

C) Report the incident immediately, attempt appropriate mitigation, and follow the required assessment and notification process

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Question 11

> An approved AI drafting tool generates a treatment-plan paragraph that includes a diagnosis the counselor never made and a medication the client does not take. The organization requires clinicians to verify all generated content before it enters the record.

What should the counselor do?

A) Save the paragraph unchanged because use of an approved tool transfers responsibility to the organization

B) Ask the client to approve the paragraph so the inaccuracies become part of shared decision-making

C) Remove unsupported content, verify the remaining information, and accept personal responsibility for the final entry

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Question 12

> A vendor offers an AI note assistant that will retain identifiable session audio to train its general model. The group practice's policy prohibits uploading identifiable client information to an outside tool until privacy, security, contracting, and clinical reviews are complete.

What is the counselor's best course of action?

A) Use the tool after verbally telling clients that artificial intelligence may improve note quality

B) Decline to upload client data unless the tool completes the required review and receives practice approval

C) Use the tool for established clients because their general consent for treatment covers documentation methods

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Question 13

> A counselor discovers that the credential specifically required by the state board to supervise prelicensed counselors expired last week. The board prohibits supervision under an expired credential, and two supervisees have sessions scheduled today.

What is the counselor's most appropriate action?

A) Continue temporarily because the counselor's underlying clinical license remains active

B) Stop providing supervision under the expired credential and arrange qualified coverage while seeking reinstatement

C) Ask the supervisees to document the meetings as peer consultation until the credential is renewed

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Question 14

A payer requests records supporting three claims during an audit. The provider agreement permits such audits, and the practice verifies the requester's identity and authority. The request is limited to documentation supporting the billed services.

How should the counselor respond?

A) Transmit the requested supporting documentation through an approved secure method and record the disclosure

B) Refuse all disclosure because payment audits never justify access to clinical documentation

C) Send the client's complete lifetime record so the payer cannot claim that relevant information was withheld

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Question 15

A private practitioner wants more online reviews and considers asking current clients during sessions to post testimonials. The counselor recognizes that clients may feel pressured because of the power difference and that public reviews can expose the reviewers' client status.

Which marketing approach is most appropriate?

A) Ask only clients who have already reported substantial improvement to post reviews

B) Avoid soliciting testimonials from current clients and use accurate, non-client-specific information in advertising

C) Offer a small fee credit to any client who posts a review without naming the counselor's specialty

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Question 16

A practice hires an outside billing company. The company asks for unrestricted access to all psychotherapy content, although it needs only limited clinical and demographic information for claims. Practice policy requires a compliant service agreement and role-based access for vendors.

What should the counselor advocate for?

A) A compliant agreement and access limited to the information the billing company needs to perform its authorized work

B) Full access because any company involved in payment automatically becomes part of the treatment team

C) No access to client information because billing functions can never be performed by an outside service

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Question 17

An approved digital screening tool labels a client's suicide risk as low, but the client's written responses describe a current plan and access to lethal means. The vendor warns that the risk label is only decision support and must be clinically reviewed.

What is the counselor's best response?

A) Accept the low-risk label because consistent use of the approved tool reduces clinician bias

B) Conduct a direct risk assessment, act on the clinical evidence, and document any decision that differs from the tool

C) Repeat the same digital screening until the software produces a result consistent with the written responses

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Question 18

An adult client requests a copy of the clinical record. The applicable rule gives the client access within 15 days unless the practice documents a permitted basis for denial and provides the required review process. The counselor is uncomfortable because several entries contain informal shorthand, but identifies no risk of harm or other lawful basis to deny access.

What should the counselor do?

A) Deny access because informal wording could cause the client to misunderstand the treatment

B) Rewrite the entries into polished summaries and provide only the rewritten version

C) Provide access within the required period while preserving the original record and following the practice's access procedure

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Question 19

During a telehealth session, a counselor notices that the platform's automatic cloud-recording feature is on. The client consented to live video counseling but not to recording. Practice policy permits recordings only with specific written consent and approved encrypted storage.

What should the counselor do?

A) Continue recording because consent to telehealth includes consent to the platform's default features

B) Finish the session and ask the client afterward whether the recording may be retained

C) Stop the recording, address the unauthorized file under policy, and obtain specific consent before any future recording

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Question 20

Which information is most important to include in telehealth informed consent before routine services begin?

A) A promise that encryption will prevent every possible privacy or technology problem

B) Privacy and technology risks, service limits, backup communication steps, and emergency procedures

C) A statement that telehealth follows the counselor's home-state rules regardless of the client's location

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Question 21

A counselor notices two days later that a progress note omitted a clinically important medication change discussed in session. The electronic record locks signed notes but permits dated addenda.

How should the counselor correct the record?

A) Enter a current, clearly labeled addendum that supplies the omitted information without changing the original date

B) Ask the system administrator to unlock the note and insert the information as if it were documented on the session date

C) Leave the note unchanged because any late entry would make the record less reliable

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Question 22

An adult client asks a counselor to delete an accurately documented diagnosis because the client is worried about stigma. The clinic's amendment policy requires a clinical review, a written reason for any denial, and an opportunity for the client to add a statement of disagreement to the record.

How should the counselor address the request?

A) Review the request, explain a supported denial in writing, and offer to add the client's statement of disagreement

B) Delete the diagnosis because concern about stigma requires the counselor to grant any requested amendment

C) Refuse to discuss the request because clients cannot challenge information entered by a clinician

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Question 23

A counselor leaving a solo practice learns that the professional liability policy is claims-made and may not cover a claim first reported after the policy ends unless extended reporting coverage applies. No claim is currently known.

What should the counselor do before ending the policy?

A) Cancel immediately because liability ends when the practice stops accepting clients

B) Rely on the next employer's policy to cover all work performed in the former practice

C) Confirm appropriate tail or prior-acts arrangements with the insurer and retain the coverage documentation

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Question 24

A counselor receives a subpoena from an attorney requesting a former client's complete record. The client has not authorized disclosure. In this jurisdiction, a subpoena issued by an attorney does not by itself override counselor-client privilege, and the agency's policy directs staff to seek legal review rather than ignore legal process.

What is the counselor's most appropriate response?

A) Send only the progress notes because they are less sensitive than the full record

B) Preserve the record, notify the client when permitted, and obtain legal guidance about asserting privilege or responding

C) Refuse the request in writing and destroy duplicate copies so they cannot be subpoenaed later

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Question 25

In an outpatient therapy group, one member reports that another member described a third member's personal story at a community event. At orientation, the counselor explained that members are expected to protect confidentiality but that the counselor cannot guarantee every member's conduct.

How should the counselor respond within the group?

A) Guarantee that no further disclosure will occur because the rule has now been reinforced

B) Address the reported breach, assess its impact, and revisit confidentiality expectations and limits with the group

C) Disband the group immediately because any member disclosure makes continued group counseling unethical

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Question 26

During a random renewal audit, a counselor realizes that two continuing education certificates cannot be located. The counselor attended the programs but cannot independently verify completion before the board's deadline.

What should the counselor do?

A) Report the documentation accurately and request the board's instructions for resolving the deficiency

B) Recreate the certificates from calendar entries and submit them as replacement documentation

C) Omit the two programs and certify that all renewal requirements have nevertheless been documented

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Question 27

> A 14-year-old client reports that a caregiver struck the client repeatedly with a belt two days ago, leaving visible bruises. The state law provided to counselors requires a report when there is reasonable suspicion of child abuse; proof is not required.

What should the counselor do?

A) Make the required report promptly and explain the confidentiality limit to the client in a supportive manner

B) Wait until the counselor interviews the caregiver and determines whether the account is credible

C) Maintain confidentiality because reporting without proof could damage the counseling relationship

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Question 28

> A counselor has provided therapy to one parent and a child for six months. An attorney asks the counselor to conduct a custody evaluation and recommend which parent should receive primary custody. The counselor has no forensic evaluation role, and the request would require evaluating people who are not counseling clients.

What should the counselor do?

A) Decline the custody evaluator role, clarify the limits of the treatment role, and provide only properly authorized factual information

B) Accept the role because the existing therapeutic relationship provides the most extensive knowledge of the family

C) Recommend the counseling client for custody while noting that the other parent was not evaluated

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Question 29

Which approach is most appropriate when a counseling practice establishes a record-retention and destruction schedule?

A) Destroy every record when treatment ends so no information remains vulnerable to disclosure

B) Keep every record permanently because indefinite retention creates the strongest legal protection

C) Apply the governing laws and contracts, document the schedule, and use secure destruction after the required period

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Question 30

When responding to a client's valid authorization to release counseling information, which practice best protects confidentiality?

A) Release the entire record so the recipient can decide which portions are relevant

B) Verify the authorization and disclose only the information covered and reasonably needed for its stated purpose

C) Summarize the record from memory so no original documentation leaves the practice

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Question 31

A licensed counselor is asked to use a specialized intervention for which the counselor lacks training and supervised experience. Which response best meets professional accountability duties?

A) Use the intervention after reading the manufacturer's overview because licensure authorizes all counseling methods

B) Ask the client to waive concerns about the counselor's limited experience before beginning the intervention

C) Obtain appropriate training and supervision or refer the client to a competent provider

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Question 32

> A counselor is licensed in the designated home state of a counseling compact. A long-term client relocates to a compact member state whose rules require the counselor to hold an active privilege to practice there. The counselor's privilege application is still pending, and no emergency exception applies.

What should the counselor do?

A) Continue telehealth because a home-state license is automatically valid in every member state

B) Continue for 30 days because an established counseling relationship predates the relocation

C) Refrain from practicing with the client in that state until the privilege is active and arrange lawful continuity of care

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Question 33

> A client sends detailed trauma information to a counselor's personal email address. The practice prohibits clinical communication through personal accounts and provides a secure client portal. The message does not indicate an emergency.

What is the counselor's best response?

A) Move further communication to the approved system, explain the privacy limit, and document the incident according to policy

B) Continue the email exchange because the client initiated communication through the personal account

C) Forward the message to the counselor's personal cloud storage so it will be available for later documentation

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Question 34

> A college student asks a counselor to sign a disability-accommodation form certifying a specific functional limitation. The counselor has not assessed that limitation, and the college requires the signer to have a reasonable clinical basis for each certification.

What should the counselor do?

A) Decline to certify an unsupported limitation and offer an appropriate assessment or referral process

B) Sign the form because supporting access is more important than documenting a clinical basis

C) Ask the student to write the limitation and sign it without reviewing the stated basis

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PART B — ANSWER KEY AND EXPLANATIONS

Answers match the numbered items in Part A.

Question 1 — Correct: C

Correct Answer: Clarify the conflict through appropriate consultation, comply with controlling law, and minimize ethical harm

Explanation: A counselor should determine how the law actually applies and use consultation to identify the most ethically responsible lawful course. Neither ethics nor law should be dismissed automatically; the counselor remains responsible for reducing avoidable harm within legal constraints.

Question 2 — Correct: B

Correct Answer: Remove the unsupported title and describe the counselor's actual education, licenses, and credentials accurately

Explanation: A workshop does not become a certification simply because its title is similar. Correcting the website prevents a misleading claim and allows prospective clients to evaluate the counselor's genuine qualifications.

Question 3 — Correct: C

Correct Answer: Provide a qualified interpreter through an accessible, confidentiality-protective arrangement

Explanation: The scenario requires effective communication and states that the client does not consent to family involvement. A qualified interpreter meets the communication need while better protecting accuracy, autonomy, and confidentiality than an unwanted companion or an ineffective written exchange.

Question 4 — Correct: A

Correct Answer: Complete the required verification and emergency checks before proceeding with clinical services

Explanation: Identity and current location are essential to privacy, jurisdiction, and emergency response in telehealth. Platform account information does not substitute for the practice's required checks, and postponing them could leave the counselor unable to respond lawfully or safely.

Question 5 — Correct: A

Correct Answer: Activate the emergency protocol using the verified location and disclose only information needed for the response

Explanation: The client has reported an immediate lethal plan, and the connection failure does not eliminate the need for action. The preverified location permits the counselor to initiate the planned response while limiting disclosure to emergency needs.

Question 6 — Correct: C

Correct Answer: Bill only for the service actually delivered and documented, and explain the financial options honestly

Explanation: Claims must accurately reflect the service provided and the documentation supporting it. Altering a code or note to increase payment would be deceptive even if the client requested or benefited from it.

Question 7 — Correct: A

Correct Answer: Give reasonable advance notice, discuss the change and available options, and update the financial agreement

Explanation: Advance notice and a revised agreement allow clients to make informed decisions and reduce disruption of care. Immediate or concealed implementation places the practice's financial interest ahead of transparent business conduct.

Question 8 — Correct: B

Correct Answer: Activate the continuity plan, notify clients through approved channels, and prioritize urgent coverage and secure record access

Explanation: The tested plan exists to maintain safe, confidential operations during exactly this kind of disruption. Waiting would leave urgent needs unmanaged, while public posting of client information would create an unnecessary privacy breach.

Question 9 — Correct: B

Correct Answer: Follow the jurisdiction's protective-action requirement, continue the safety assessment, and limit disclosures to what is necessary

Explanation: The stated facts support a serious, imminent, and identifiable threat under the supplied law. Reasonable protective action and limited disclosure meet the legal duty without the excessive exposure that a workplace-wide warning would create.

Question 10 — Correct: C

Correct Answer: Report the incident immediately, attempt appropriate mitigation, and follow the required assessment and notification process

Explanation: Misdirected protected information requires timely handling under the practice's stated incident procedure. Waiting or deleting evidence would impede mitigation, risk assessment, and accurate compliance documentation.

Question 11 — Correct: C

Correct Answer: Remove unsupported content, verify the remaining information, and accept personal responsibility for the final entry

Explanation: Approval of a tool does not make its output clinically accurate or transfer authorship responsibility away from the counselor. Unsupported diagnosis and medication information must be removed, and every retained statement must be verified before entry into the record.

Question 12 — Correct: B

Correct Answer: Decline to upload client data unless the tool completes the required review and receives practice approval

Explanation: The proposed use would expose identifiable clinical data and train an outside model before required safeguards are established. General treatment consent or a brief verbal disclosure does not replace the mandated privacy, security, contracting, and clinical reviews.

Question 13 — Correct: B

Correct Answer: Stop providing supervision under the expired credential and arrange qualified coverage while seeking reinstatement

Explanation: The state board expressly prohibits supervision under the expired credential. The active clinical license does not substitute for the required supervisor credential, and relabeling formal supervision as peer consultation would misrepresent the service.

Question 14 — Correct: A

Correct Answer: Transmit the requested supporting documentation through an approved secure method and record the disclosure

Explanation: The verified audit is authorized by the provider agreement and is limited to documentation supporting the claims. A secure, documented response meets the request without disclosing the client's entire record or refusing a permitted review.

Question 15 — Correct: B

Correct Answer: Avoid soliciting testimonials from current clients and use accurate, non-client-specific information in advertising

Explanation: Current clients may experience a request for a public review as pressure, and the review itself may reveal their relationship with the counselor. Truthful, non-client-specific advertising avoids exploiting that power difference and does not trade financial benefit for disclosure.

Question 16 — Correct: A

Correct Answer: A compliant agreement and access limited to the information the billing company needs to perform its authorized work

Explanation: An outside billing service may need protected information, but access should be governed by the required agreement and restricted by role and task. Payment involvement does not make unrestricted psychotherapy content necessary, while a total ban would prevent a permitted business function.

Question 17 — Correct: B

Correct Answer: Conduct a direct risk assessment, act on the clinical evidence, and document any decision that differs from the tool

Explanation: The tool is decision support, and its low-risk label conflicts with clinically significant evidence of a plan and means. The counselor retains responsibility for assessment and action and should document the basis for overriding the automated output.

Question 18 — Correct: C

Correct Answer: Provide access within the required period while preserving the original record and following the practice's access procedure

Explanation: Discomfort with informal shorthand is not a permitted basis for denial under the supplied rule. The counselor should preserve the original record and complete the access process rather than rewriting history or withholding the file.

Question 19 — Correct: C

Correct Answer: Stop the recording, address the unauthorized file under policy, and obtain specific consent before any future recording

Explanation: Consent to live telehealth does not satisfy the practice's separate written-consent requirement for recording. The counselor should stop further capture, manage the existing file through the approved incident process, and obtain valid consent before recording later sessions.

Question 20 — Correct: B

Correct Answer: Privacy and technology risks, service limits, backup communication steps, and emergency procedures

Explanation: Telehealth consent should prepare clients for foreseeable privacy, technology, continuity, and emergency issues. Absolute security promises are misleading, and a counselor cannot disregard the laws tied to the client's location.

Question 21 — Correct: A

Correct Answer: Enter a current, clearly labeled addendum that supplies the omitted information without changing the original date

Explanation: A transparent addendum improves clinical completeness while preserving the chronology and integrity of the signed note. Backdating an altered entry would make it appear that the information was recorded when it was not.

Question 22 — Correct: A

Correct Answer: Review the request, explain a supported denial in writing, and offer to add the client's statement of disagreement

Explanation: A right to request amendment does not require deletion of information the provider determines is accurate and complete. The supplied policy calls for a reasoned written response and a way to preserve the client's disagreement rather than erasing the clinical record or refusing the process.

Question 23 — Correct: C

Correct Answer: Confirm appropriate tail or prior-acts arrangements with the insurer and retain the coverage documentation

Explanation: A claims-made policy may leave a gap when a later claim concerns services performed before the policy ended. Confirming extended reporting or compatible prior-acts coverage before cancellation is a prudent professional accountability step.

Question 24 — Correct: B

Correct Answer: Preserve the record, notify the client when permitted, and obtain legal guidance about asserting privilege or responding

Explanation: The subpoena must be addressed, but the facts state that it does not itself defeat privilege. Preserving the record and seeking legal review protects confidentiality while allowing a lawful response; unilateral disclosure or destruction would be improper.

Question 25 — Correct: B

Correct Answer: Address the reported breach, assess its impact, and revisit confidentiality expectations and limits with the group

Explanation: The counselor cannot guarantee member behavior but remains responsible for responding to a reported violation and reinforcing informed group norms. Immediate dissolution is not automatically required, and a new guarantee would misstate the limits of group confidentiality.

Question 26 — Correct: A

Correct Answer: Report the documentation accurately and request the board's instructions for resolving the deficiency

Explanation: Renewal and audit submissions must be truthful and supportable. Honest disclosure and board guidance preserve accountability, whereas recreating certificates or certifying undocumented compliance would misrepresent the record.

Question 27 — Correct: A

Correct Answer: Make the required report promptly and explain the confidentiality limit to the client in a supportive manner

Explanation: The supplied law uses reasonable suspicion, and the disclosure plus visible bruising satisfies that threshold without requiring the counselor to prove abuse. Investigating the caregiver before reporting could delay a legally required protective response.

Question 28 — Correct: A

Correct Answer: Decline the custody evaluator role, clarify the limits of the treatment role, and provide only properly authorized factual information

Explanation: A treating counselor should not convert an existing therapeutic role into an impartial custody evaluation, especially without evaluating all relevant parties. Clarifying the role and limiting any release to authorized facts avoids an unsupported forensic opinion and a serious role conflict.

Question 29 — Correct: C

Correct Answer: Apply the governing laws and contracts, document the schedule, and use secure destruction after the required period

Explanation: Retention obligations can arise from law, regulation, contracts, and professional duties, so a practice needs a documented schedule that reconciles them. Automatic immediate destruction and indefinite retention both ignore those requirements and create avoidable risk.

Question 30 — Correct: B

Correct Answer: Verify the authorization and disclose only the information covered and reasonably needed for its stated purpose

Explanation: A valid authorization defines the permitted disclosure, but it does not justify sending unrelated clinical material. Verification and a purpose-limited release reduce unnecessary exposure while honoring the client's direction.

Question 31 — Correct: C

Correct Answer: Obtain appropriate training and supervision or refer the client to a competent provider

Explanation: Licensure alone does not establish competence in every specialized method. Training, supervision, or referral protects the client, whereas a waiver cannot transfer the counselor's duty to practice within competence.

Question 32 — Correct: C

Correct Answer: Refrain from practicing with the client in that state until the privilege is active and arrange lawful continuity of care

Explanation: The receiving state's stated rule requires an active compact privilege, and a pending application does not satisfy it. An established relationship or home-state license does not create an exception that the scenario says is unavailable.

Question 33 — Correct: A

Correct Answer: Move further communication to the approved system, explain the privacy limit, and document the incident according to policy

Explanation: The client's choice to use personal email does not eliminate the counselor's responsibility to follow secure communication policy. Redirecting the exchange, explaining the limitation, and documenting the event protects confidentiality without ignoring the client's message.

Question 34 — Correct: A

Correct Answer: Decline to certify an unsupported limitation and offer an appropriate assessment or referral process

Explanation: Advocacy for access does not justify a clinical statement that lacks an assessment basis. An appropriate evaluation or referral supports the student's request through accurate documentation rather than an unsupported certification.
